

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: DENMARK

Organization or entity responsible for the preparation of the report: The Ministry of Children and Education

Name of contact person: Kanita Aref

Email and telephone number of contact person: Kanita.Aref@uvm.dk ; +45 21 36 09 18

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

¹⁰

<https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹

Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

The Danish Constitution states that all children in Denmark have the right to receive free education at elementary and lower secondary levels.

This principle is applied throughout the entire education system. There is consequently free and equal access to attend public schools on primary, lower and upper secondary, technical and vocational, and higher education levels.

It follows from the purpose clause of the *Folkeskole* legislation (§1) that “The daily activities of the school must, therefore, be conducted in a spirit of intellectual freedom, equality and democracy”. Thus, the rights and principles laid out in the convention is reflected in the *Folkeskole* legislation.

The purpose of the Day Care Act is, among other things, "preventing negative social inheritance and exclusion" (§ 1, point 3 in the Day Care Act).

Day care facilities must promote well-being, development, learning, etc., for all children. This means they include children that need extra support in order to thrive (Section 4(2) in the Day

¹²

Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

Care Act). Children with extensive and permanent physical or intellectual disabilities have the right to extra support as guaranteed in the Act on The Child (Section 4(3) in the Day Care Act). The large majority of children attend a day care according to the Day Care Act.

Day cares for children with extensive and permanent physical or intellectual disabilities, run according to the Act on The Child are under the Ministry of Social Affairs, Housing and Senior Citizens

Day-care, Leisure and Club Activities (Children and Young Persons) (Consolidation Act No 55 of 17 January 2024). [Dagtilbudsloven \(retsinformation.dk\)](https://www.retsinformation.dk)

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

Early Childhood Education and Care

All families are guaranteed day-care availability in their municipality of residence. This guarantee is from the day the child turns 26 weeks and until school age. Parents pay a maximum of 25 % of the budgeted gross operating expenditure for ECEC services for children from the age of 26 weeks to six years. Families receive a sibling discount. The municipal council must grant subsidies based on the parents' financial situation, in some cases covering up to the full amount of the costs for day-care. Furthermore, parents of children with socioemotional treatment needs can have a supplemental subsidy.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

Day-care, Leisure and Club Activities (Children and Young Persons) Act [Lov om dag-fritids- og klubtilbud mv. til børn og unge (dagtilbudsloven)] (Consolidation Act No 55 of 17 January 2024). [Dagtilbudsloven \(retsinformation.dk\)](https://retsinformation.dk)

It appears from the Education Environment Act §1 that pupils, students and other participants in public and private education have the right to a good education environment, so that education can take place in a fully responsible manner in terms of safety and health. The teaching environment at schools and educational institutions (educational sites) must promote the participants' opportunities for development and learning and therefore includes the psychological and aesthetic environment of the educational institution.

Primary and Lower Secondary Education

- The Danish Constitution §76
- Folkeskoleloven §1, stk. 3

General upper secondary education

Admission to upper secondary education in Denmark is based on academic performance and specific entry requirements. These criteria are applied uniformly to all students.

Regarding general upper secondary education, Danish law states that the common objective of general upper secondary education programmes is to 1) Prepare the students for higher education, and 2) Ensure that the students acquire 'almendannelse', an ambiguous term that can be translated in to 'general education'. The common objective is reached by the knowledge and competences that the students acquire through the subjects and the multi-subject courses they study and through the school culture and environment. The students must achieve the abilities to actively participate in a democracy and gain an understanding of the possibilities of individually and collectively contributing to development and change etc. Teaching and the daily life of the educational institution must therefore be based on 'åndsfrihed' (freedom of spirit/mind), equality and democracy and strengthen the students' knowledge of and respect for fundamental freedom rights and human rights – including gender equality.

Furthermore, the Regional Council in the region where an institution is located can give priority to an applicant due to disability, if the Regional Council assesses that it is of significant importance for the applicant to be admitted to the particular institution due to the applicant's disability and mobility in comparison with the institution's accessibility.

Vocational education and training

In vocational education and training, the Working Environment Act covers students and apprentices, when they are in training. The Act aims to create a safe and healthy physical and mental working environment that is at all times in accordance with the technical and social development in society. The Equal Treatment Act covers students and apprentices both in school and in training. It appears from Section 1 of the Equal

Treatment Act that by equal treatment of men and women, it is understood that there is no discrimination based on gender.

Adult education and alternative learning

Preparatory Basic Education enable youths below 25 to improve professionally, personally and socially with the aim to proceed into the labour market or upper secondary and vocational education and training. FGU offers an inclusive learning environment where students are enabled to participate in lessons equally on their own level. The teaching of students with dyslexia and students with other needs that require special consideration or support must be holistic and, as far as possible, take place through an inclusive learning environment. The teaching must support and motivate the use of compensatory aids if appropriate. In Preparatory Basic Education, students with special needs are eligible for special educational aids like reading-writing technology, specially designed teaching materials, sign language interpretation and written interpretation.

Specially planned youth education: Adults, and young people who finished compulsory education, with physical or psychological disabilities can receive specifically organized education and counselling to mitigate or limit the impact of their disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society. The special needs education is provided and planned by the municipalities, based on the citizen's individual prerequisites, skills, and needs.

Special needs education for adults with physical or psychological disabilities: Adults, and young people who finished compulsory education, with physical or psychological disabilities can receive specifically organized education and counselling to mitigate or limit the impact of their disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society. The special needs education is provided and planned by the municipalities, based on the citizen's individual prerequisites, skills, and needs.

Education for adults with dyslexia: There is a continuous political focus on promoting equal access to education for people with disabilities. Since 2019 Danish ministers' of Children and Education has passed five dyslexia packages. Each political agreement contains several initiatives – e.g. establishment of a National Center for knowledge on dyslexia, seven million Danish kroner for educating dyslexic teachers and reading assistants, development of a dyslexia-test for children and youngsters with a poor Danish vocabulary. The newest dyslexia package is package 5 and focuses specifically on adults, parents and young people with no education or job (the NEET group).

General adult education: Adults with dyslexia, adults who lack basic skills in reading, mathematics, IT and English as well as adults who need to improve their skills at primary school level have access to the general adult education offers; i.e. dyslexia education for adults, preparatory adult education and general adult education. Participants with disabilities or similar difficulties who need special educational assistance are offered relevant support in the form of e.g. aids and instructions for their use, personal assistance and secretarial assistance, specially designed teaching materials and sign language interpretation and writing interpretation.

Adult vocational training

Individuals with disabilities attending adult vocational training are entitled to

receive special educational assistance tailored to their needs. This may include one or more of the following types of support:

1. Assistive devices and instructions of use.
2. Individualized assistance.
3. Allocation of support hours.
4. Specially designed educational materials.
5. Interpretation services for sign language and written text.

The assigned educational support can be used for various purposes such as instruction, field trips, tests and traineeship. Furthermore, if a participant with disabilities enrolls in another educational programme that qualifies for special educational assistance, they may continue to receive support. The adult education provider is obliged to provide the necessary resources for participants with physical or mental disabilities. This can be achieved in different ways:

- Providing access to special educational devices/tools and support during the test.
- Assistive technology can include a tablet or laptop with synthetic speech and a scanner, as well as training materials in electronic form. Assistive technology is particularly relevant for participants with reading, visual or hearing impairments. For participants who are deaf, the support can include sign language interpretation.
- Permission to use a support person that can help with typing and writing during the test.
- Ensuring that test materials are available in formats that are accessible to the participant.
- Allowing extra time to prepare and complete the test.
- Providing a calm and focused environment for participants who have difficulty concentrating.

Higher Education:

The regulations against discrimination are contained in the Act prohibiting discrimination in employment which also applies to vocational education

Equal access to education is secured through the administrative acts on access to the specific types of education – the applicants are valued only on academic qualifications:

Ministerial Order on Access to Business Academies and University Colleges (*Bekendtgørelse om adgang til erhvervsakademiuddannelser og professionsbacheloruddannelser*), BEK no. 56 of 10/01/2024.

Ministerial Order on Access to university programmes organised full-time (*Bekendtgørelse om adgang til universitetsuddannelser tilrettelagt på heltid*), BEK no. 51 of 14/01/2024.

Ministerial Order on Access to fine arts study programmes organized full-time (*Bekendtgørelse om adgang til videregående kunstneriske uddannelser tilrettelagt på heltid*), BEK no. 57 of 10/01/2024

The Act on Maritime Education (*Bekendtgørelse af lov om maritime uddannelser*), LBK nr 691 af 11/06/2024

References:

Forskelsbehandlingsloven: <https://www.retsinformation.dk/eli/lta/2024/399>

Ligebehandlingsloven: <https://www.retsinformation.dk/eli/lta/2011/645>

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Higher education:

- Gender
- Race, skin colour or ethnic origin
- Religion or faith
- Sexual orientation
- National or social origin
- Political views
- Age
- Disability

Primary and Lower Secondary Education

The Danish constitution states that every child in the compulsory school age has the right to free education in the Danish primary and lower secondary school. Thus, the government is of the conviction that Denmark fully respects the provisions of the Convention.

Furthermore, the Danish Folkeskole legislation does not explicitly prohibit discrimination. Instead, it is formulated positively as “The daily activities of the school must, therefore, be conducted in a spirit of intellectual freedom, equality and democracy”.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

Early Childhood Education and Care

In 2018, a new strengthened pedagogical curriculum was enforced, amongst many other things focusing on how ECEC can contribute to the realization of children's full potential, no matter their gender, culture or ethnicity. An inspiration catalogue focusing on "culture, aesthetics and communities" in ECEC provides pedagogical staff with a number of examples on how to promote equality between the sexes already in ECEC.

In July 2019, an amendment to the Act on ECEC made it mandatory for children in vulnerable housing areas to participate in a mandatory learning program if they are not already participating in ECEC. The mandatory learning program of 25 hours per week shall help children develop their language skills and learning abilities as well as introduce them to values such as democracy and equality between the sexes. A pamphlet was produced that amongst other things inspires pedagogical staff on how to promote gender equality through their pedagogical methods. The mandatory learning programme obliges municipalities to work with the parents in order for them to help introduce their children to amongst other things values such as democracy and equality between the sexes.

Primary and Lower Secondary Education

In Denmark, a cornerstone in ensuring equal access to education is special pedagogical assistance to children with special educational needs. All children who are assessed to be in the target group have the right to receive special pedagogical assistance.

This assistance aims to ensure the participation of students with special educational needs in the general classes. Thus, support must be given, whenever possible, in general classes. If a student is not able to participate in general education, they have the right to receive segregated special education in special classes or special schools.

It is important in the Danish approach to children with special educational needs to make sure that learning environments are inclusive and that the emphasis is on the entire class community, and not just on the individual learners with special educational needs. Therefore, it is a common task to make sure that learning environments are adapted to ensure that all children can develop both in terms of learning and in terms of developing their social skills.

Students who need assistance to overcome practical difficulties related to their learning must receive personalised assistance. One such example is the Danish approach to students with dyslexia. In recent years, there has been a strong focus on diagnosing students with dyslexia and on making sure they get access to tools that can assist them in participating. These kinds of individualised learnings support measures make sure that students can participate in learning activities in the first place.

General upper secondary education

Denmark has a special education scheme for young people with autism at the general upper secondary level. The special school classes have a maximum capacity of 12 students and are designed to meet specific needs of young people with

autism. The Danish government has increased the amount of these special school classes from 13 to 19 in 2024.

Vocational education and training

Students with disabilities:

It is a requirement in vocational education and training that time allocated to education at school must be a full-time study.

The Board of Equal Treatment decided in November 2022 that it is against the principle of equal treatment in the Discrimination Act to refuse to meet the need of an applicant with a disability for vocational education and training as a part-time study.

Therefore, in January 2024 BUVM announced providers of vocational education and training that, based on a specific and individual assessment of the apprentice, they must manage the legislation on vocational training in accordance with the Discrimination Act. This means that schools must admit applicants on a part-time basis if the conditions are according to the decision in the Board of Equal Treatment, and it has been concluded that SPS is not a sufficient measure in order for the individual to complete the vocational education and training program.

The school must carry out a specific and individual assessment of whether the individual apprentice with a disability will be able to complete the vocational education and training program under normal conditions, i.e. as full-time teaching and whether the apprentice's disability can be remedied with SPS.

Since the beginning of 2022, providers of vocational education and training have as a trial scheme had the opportunity to organize the second part of the basic course (GF2) on special terms for students and apprentices with disabilities or similar severe difficulties. The duration of GF2 can thereby be extended by up to 50%.

Gender:

With the tripartite agreement on sexual harassment from 2022, it was agreed that the following should be implemented in the field of vocational training and education:

1. Clarification of access to canceling an education agreement on due to sexual harassment. It was introduced in the Vocational Training Act that in cases of sexual harassment, where the student terminates the education agreement, the deadline of one month can be waived after concrete assessment. With the tripartite agreement, it was emphasized that sexual harassment in the sense of the Equal Treatment Act is basically a significant breach that can justify the cancellation of the training agreement.
2. Fast track in the professional committees and in the Disputes Board in cases of sexual harassment. Under the auspices of the Ministry of Children and Education, a committee was established with the parties to establish a uniform and particularly fast and confidential process (fast track) for the professional committees' and the Disputes Board's handling of cases of sexual harassment.

3. Access to school education when a case of sexual harassment has been filed. It was introduced in the Vocational Training Act that students/apprentices can be admitted to school training when a case of sexual harassment has been brought before the Disputes Board until the case is settled.

4. Guidance for schools on their duty to provide another apprenticeship when a pupil or apprentice has been exposed to sexual harassment and have lost their training agreement. The Ministry of Children and Education offers guidance for schools about their duties in relation to providing apprenticeships to pupils and apprentices who has been exposed to sexual harassment, so that they can continue their education in another company or another department of the same company.

5. Clarification of the rules for revocation of approval as training business due to sexual harassment. It is made clear in the rules that the professional committee's approval of companies such as training activities can be revoked if the prerequisite for approval is breached, e.g. in repeated cases of sexual harassment. It was introduced in the Vocational Education and Training Act that a professional committee's decision to revoke, or fail to revoke, an approval can be brought before the Appeals Board for Training by one of the parties represented in the professional committee.

Teachers training:

Teachers participating in a diploma programme in vocational education have the opportunity to take a module about various prerequisites of young people and adults and their opportunities to participate. The teacher learn how to differentiate their teaching in order to strengthen the apprentices' opportunities for participation.

During the module, the teachers work with the following themes:

- The societal context
- Learning environment, cultures and positions
- Functional variants, functional impairments and dyslexia
- Young people and adults in vocational training and education - perspectives on motivation, commitment and drive
- The teacher's role, relationships and differentiation
- Pattern breaking processes, ethnicity and racialization
- The gender-segregated education system and labor market

The module described above is not compulsory. However, it must be emphasized that the law states that schools have to ensure a good and safe teaching environment. It is also stated in the law that the vocational education system must be organized in such a way, that it ensures that everyone who wants a vocational education has the opportunity.

The Ministry of Children and Education will in summer 2024 release guiding materials directed at both students and schools that describe how to take action when a student has been exposed to sexual harassment and other violations during their

apprenticeship. The purpose of the materials is to ensure that students get the help they need and that they know of their rights in situations regarding harassment

Adult education and alternative learning

There are a number of opportunities for adults wishing to receive education and refresh their competences. Denmark has a long tradition of improving the competences of the workforce beyond compulsory stages of education. In fact, the notion is very much that learning is a lifelong occupation.

Adult vocational training

There are approximately 3000 different adult vocational training programmes and 200 single subject courses from the mainstream vocational training and education programme, all of which may be combined. They are mainly short vocational training programmes, the duration of which normally varies from half a day to 6 weeks, in average 3 days. It is possible to combine adult vocational training programmes in the same job area or to supplement a programme with more specialized programmes within a field.

There are user fees on technical, commercial, ICT, language and social communication, management etc. adult vocational training programs. On average the user fee for adult vocational training programs is about 15 per cent of the total expenditure. The expenditure for user fee is normally paid by the employers. Courses in the social and health service, individual competence assessment and participation by the unemployed who attend individually selected programmes for 6 weeks are free of user fees.

Preparatory Basic Education enable youths below 25 to improve professionally, personally and socially with the aim to proceed into the labour market or upper secondary and vocational education and training. The education offers an inclusive learning environment where students are enabled to participate in lessons equally on their own level. The teaching of students with dyslexia and students with other needs that require special consideration or support must be holistic and, as far as possible, take place through the inclusive learning environment. The teaching must support and motivate the use of compensatory aids if appropriate. In Preparatory Basic Education, students with special needs are eligible for special educational aids like reading-writing technology, specially designed teaching materials, sign language interpretation and written interpretation.

Specially planned youth education

Adults, and young people who finished compulsory education, with physical or psychological disabilities can receive specifically organized education and counselling to mitigate or limit the impact of their disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society. The special needs education is provided and planned by the municipalities, based on the citizen's individual prerequisites, skills, and needs.

Special needs education for adults with physical or psychological disabilities: Adults, and young people who finished compulsory education, with physical or psychological disabilities can receive specifically organized education and counselling to mitigate or limit the impact of their disability, e.g. methods and aids that can compensate for

the disability in order for the citizen to better participate in society. The special needs education is provided and planned by the municipalities, based on the citizen's individual prerequisites, skills, and needs.

Education for adults with dyslexia

There is a continuous political focus on promoting equal access to education for people with disabilities. Since 2019, Danish ministers of Children and Education has passed five dyslexia packages. Each political agreement contains several initiatives – e.g. establishment of a National Center for knowledge on dyslexia, seven million Danish kroner for educating dyslexic teachers and reading assistants, development of a dyslexia-test for children and youngsters with a poor Danish vocabulary. The newest dyslexia package is package 5 and focuses specifically on adults, parents and young people with no education or job.

General adult education

Adults with dyslexia, adults who lack basic skills in reading, mathematics, IT and English as well as adults who need to improve their skills at primary school level have access to the general adult education offers; i.e. dyslexia education for adults (OBU), preparatory adult education (FVU) and general adult education (avu). Participants with disabilities or similar difficulties who need special educational assistance are offered relevant support in the form of e.g. aids and instructions for their use, personal assistance and secretarial assistance, specially designed teaching materials and sign language interpretation and writing interpretation

Adult vocational training)

Individuals with disabilities attending adult vocational training are entitled to receive special educational assistance (SPS) tailored to their needs. This may include one or more of the following types of support:

6. Assistive devices and instructions of use.
7. Individualised assistance.
8. Allocation of support hours.
9. Specially designed educational materials.
10. Interpretation services for sign language and written text.

The assigned educational support can be used for various purposes such as instruction, field trips, tests and traineeship. Furthermore, if a participant with disabilities enrolls in another educational programme that qualifies for special educational assistance, they may continue to receive support. The adult education provider is obliged to provide the necessary resources for participants with physical or mental disabilities. This can be achieved in different ways:

- Providing access to special educational devices/tools and support during the test.
- Assistive technology can include a tablet or laptop with synthetic speech and a scanner, as well as training materials in electronic form. Assistive technology is particularly relevant for participants with

reading, visual or hearing impairments. For participants who are deaf, the support can include sign language interpretation.

- Permission to use a support person that can help with typing and writing during the test.
- Ensuring that test materials are available in formats that are accessible to the participant.
- Allowing extra time to prepare and complete the test.
- Providing a calm and focused environment for participants who have difficulty concentrating.

Higher education: Is covered by general legislation, see below.

☒ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

Early Childhood Education and Care

As previously stated, a new strengthened pedagogical curriculum was enforced in 2018, amongst many other things focusing on how ECEC can contribute to the realization of children's full potential, no matter their gender, culture or ethnicity. An inspiration catalogue focusing on "culture, aesthetics and communities" in ECEC provides pedagogical staff with a number of examples on how to promote equality between the sexes already in ECEC.

Primary and Lower Secondary Education:

There is no compulsory curriculum for the Danish primary and lower secondary education. The so-called *common objectives* (Fælles Mål) is a curricular framework and consist of objectives for each subject at each level, pointing to the skills and abilities that pupils must obtain at the end of each level, but instruction is planned locally by the teacher including decisions about which methods and materials to use and themes to teach. Democratic Citizenship and human rights are highlighted in Common Objectives within the following subjects: social studies, history and health, sex and family life education.

In addition, there is a canon in history, which describes a number of historical events, which are compulsory to teach. These events includes introduction of women's suffrage, the Holocaust and the The UN's Universal Declaration of Human Rights –

events to educate children in the introduction of human rights and thus help to prevent discrimination.

Finally the object clause in the law of “folkeskole” also sets as a fundamental goal for the public school to provide the pupils with an understanding of different cultures.

Vocational education and training

The subject “Psychology” contributes to developing the students and apprentices skills in understanding and respecting people’s differences on the basis of personal, social and cultural factors.

The subject “Society” contributes to developing the students and apprentices skills to participate as an active, responsible and proactive citizen in a democratic society in an internationalized world.

The professional committees determine the content and objectives of each of the vocational educations. The committees are owned by the social partners and are tasked with ensuring that the content of the education is updated and developed continuously. Therefore, the content of teaching curricula varies from education to education.

Preparatory basic education

The education takes place in an inclusive learning environment, where the teaching is based on openness, equality and democracy, the purpose of which is to enable the student to participate actively and equally as a citizen in the democracy and the community. The students are also taught about the labour market and their rights and duties in the workplace. The students are taught the subjects “Identity and citizenship” and “Personal finance, workplace education, cooperation training and vocations training” which both contain training in citizen skills and openness to people with different outlooks on life etc.

Specially planned youth education (STU): The education and counselling is specifically organized to mitigate or limit the impact of the individual student’s disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society.

General upper secondary education

There is a number of both mandatory subjects, such as Danish, English, Social Studies, History, as well as optional subjects, such as Psychology, that contribute to developing the students’ democratic understanding as well as their ability to engage in and reflect on the society they are a part of.

Students commencing general upper secondary education from the academic year 2023/2024 onwards must undergo mandatory sex education. The requirement for mandatory sex education applies to the 3-year programmes (higher technical, commercial, and general examination programmes). It also applies to the 2-year higher preparatory examination (hf). In sex education, students will have the opportunity to explore a wide range of topics such as consent, boundaries, contraception, and sexually transmitted diseases. The digital dimension, including topics like consent and boundaries on social media, can be integrated as part of the

themes covered in sex education. Sex education has no set time frame but is to be taught when relevant to the students.

The learning environment is based on principles of openness, dialogue, and of examining and discussing all topics academically and scientifically, based on the academic and scientific tradition in each subject.

In terms of bias and stereotypes within the curricula in upper secondary education, this may occur in certain subjects, such as literary studies, media studies and history, due to the nature of these subjects. The objective is then placing historical sources and literature in its historical context with the purpose of critically and academically discussing context, development, consequences and so on of any bias or stereotype that might be present in the examined texts or other sources.

Higher education: Is covered by general legislation, see below. The Ministry does not define the curriculum in higher education programmes.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Student councils play an important role in terms of bringing issues to the table on behalf of all students at their schools, such as gender equality or discrimination.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

☒ Legislation provides for inclusive education for all

☒ Policy measures aim to enhance inclusion in education for all

☒ Teachers are trained on inclusive education¹⁶ and to value diversity

☒ Multiple and flexible learning pathways¹⁷ are provided for

☒ Curricula and teaching methods are inclusive in design¹⁸

☒ Multilingual and intercultural education is supported

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

- ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Primary and Lower Secondary Education:

First of all, education is free of charge in Denmark. The Danish Constitution states that all children in Denmark has the right and duty to receive free education at elementary and lower secondary levels. Put together this equates 10 years of mandatory and free education. Parents can alternatively choose home schooling or private, independent schools. At all levels of education in Denmark the goal is inclusive quality education for all in a safe and supportive environment free from discrimination of any kind.

As mentioned above, a cornerstone in ensuring equal access to education is special pedagogical assistance to children with special educational needs. All children who are assessed to be in the target group have the right to receive special pedagogical assistance.

This assistance aims to ensure the participation of students with special educational needs in the general classes. Thus, support must be given, whenever possible, in general classes. If a student is not able to participate in general education, they have the right to receive segregated special education in special classes or special schools.

Special pedagogy is an elective course in the Danish Teacher Education. Municipalities are responsible for the ongoing competence development of the school staff, which can be through formal courses or through informal development with e.g. peer learning or other locally founded initiatives.

In Denmark, there is no compulsory curriculum for the Danish primary and lower secondary education. Instead, instruction is planned locally by the teacher – including decisions about which methods, materials to use, and themes to teach. This entails, there is great room to vary the teaching according to the level the group of pupils is at, and thus make the teaching inclusive.

General upper secondary education:

Admission to upper secondary education in Denmark is based on academic performance and specific entry requirements. These criteria are applied uniformly to all students.

Common objective

Regarding general upper secondary education, Danish law states that the common objective of general upper secondary education programmes is to 1) Prepare the students for higher education, and 2) Ensure that the students acquire 'almendannelse', an ambiguous term that can be translated in to 'general education'. The common objective is reached by the knowledge and competences that the students acquire through the subjects and the multi-subject courses they study and through the school culture and environment. The students must achieve the abilities to actively participate in a democracy and gain an understanding of the possibilities of individually and collectively contributing to development and change etc. Teaching and the daily life of the educational institution must therefore be based on 'åndsfrihed' (freedom of spirit/mind), equality and democracy and strengthen the students'

knowledge of and respect for fundamental freedom rights and human rights – including equality between sexes.

Postgraduate teacher education programme

The postgraduate teacher education programme (“pædagogikum”) emphasizes professional ethics and the teacher's role in fostering an inclusive and respectful classroom culture. Teachers are encouraged to be aware of their own biases and to actively work against them in their professional practice.

Furthermore, the theoretical courses of the “pædagogikum” cover a wide range of topics related to inclusive education, including strategies for creating an inclusive classroom environment that respects diversity. During the in-school training part of the programme, trainees have the opportunity to apply inclusive teaching strategies and receive feedback on their performance. They learn to adapt their teaching methods to accommodate students from diverse backgrounds and with different needs.

Students with disabilities

The Regional Council in the region where an institution is located can give priority to an applicant due to their disability, if the Regional Council assesses that it is of significant importance for the applicant to be admitted to the particular institution due to the applicant's disability and mobility in comparison with the institution's accessibility.

Examinees with physical and mental disabilities may be offered the opportunity to take an exam under special conditions. The exam itself is not changed – but the examinee is compensated through these special conditions, such as by being given more time for the exam or being allowed to use special aids. Both written and oral exams can be arranged with special conditions. It is the management of the institution that decides whether an examinee can be offered special exam conditions. The purpose of special exam conditions is to place examinees with a disability on an equal footing with other examinees during the exam situation.

Furthermore, Denmark has a special education scheme for young people with autism at the general upper secondary level. The special school classes have a maximum capacity of 12 students and are designed to meet specific needs of young people with autism. The Danish government is increasing the amount of these special school classes by almost 50 percent in 2024.

Vocational education and training

In vocational education and training, the Working Environment Act covers students and apprentices, when they are in training. The Act aims to create a safe and healthy physical and mental working environment that is at all times in accordance with the technical and social development in society. The Equal Treatment Act covers students and apprentices both in school and in training. It appears from Section 1 of the Equal Treatment Act that by equal treatment of men and women, it is understood that there is no discrimination based on gender. Since the beginning of 2022, providers of vocational education and training has as a trial scheme had the opportunity to organize the second part of the basic course (GF2) on special terms for students and apprentices with disabilities or similar severe difficulties. The duration of GF2 can thereby be extended by up to 50%.

From medio 2022 to medio 2025 providers of upper secondary education and vocational education and training has as a trial scheme had the opportunity to lengthen the programme for students and apprentices, who are placed outside of home e.g. in foster care. The purpose of the trial scheme is to improve the possibility that the students and apprentices can complete the programme due to for example psychological or social problems.

Adult education and alternative learning

Preparatory Basic Education (FGU) offers an inclusive learning environment where students are enabled to participate in lessons equally on their own level. The teaching of students with dyslexia and students with other needs that require special consideration or support must be holistic and, as far as possible, take place through the inclusive learning environment. The teaching must support and motivate the use of compensatory aids if appropriate. In Preparatory Basic Education, students with special needs are eligible for special educational aids like reading-writing technology, specially designed teaching materials, sign language interpretation and written interpretation.

Specially planned youth education (STU): The education and counselling is specifically organized to mitigate or limit the impact of the individual student's disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society

Education for adults with dyslexia: There is a continuous political focus on promoting equal access to education for people with disabilities. Since 2019 the Danish ministry of Children and Education has passed five dyslexia packages. Each political agreement contains several initiatives – e.g. establishment of a National Center for knowledge on dyslexia, seven million Danish kroner for educating dyslexic teachers and reading assistants, development of a dyslexia-test for children and youngsters with a poor Danish vocabulary. The newest dyslexia package is package 5 and focuses specifically on adults, parents and young people with no education or job.

General adult education: Adults with dyslexia, adults who lack basic skills in reading, mathematics, IT and English as well as adults who need to improve their skills at primary school level have access to the general adult education offers; i.e. dyslexia education for adults, preparatory adult education and general adult education . Participants with disabilities or similar difficulties who need special educational assistance are offered relevant support in the form of e.g. aids and instructions for their use, personal assistance and secretarial assistance, specially designed teaching materials and sign language interpretation and writing interpretation

Adult vocational training

Individuals with disabilities attending adult vocational training are entitled to receive special educational assistance (SPS) tailored to their needs. This may include one or more of the following types of support:

11. Assistive devices and instructions of use.
12. Individualised assistance.
13. Allocation of support hours.
14. Specially designed educational materials.
15. Interpretation services for sign language and written text.

The assigned educational support can be used for various purposes such as instruction, field trips, tests and traineeship. Furthermore, if a participant with disabilities enrolls in another educational programme that qualifies for special educational assistance, they may continue to receive support. The adult education provider is obliged to provide the necessary resources for participants with physical or mental disabilities. This can be achieved in different ways:

- Providing access to special educational devices/tools and support during the test.
- Assistive technology can include a tablet or laptop with synthetic speech and a scanner, as well as training materials in electronic form. Assistive technology is particularly relevant for participants with reading, visual or hearing impairments. For participants who are deaf, the support can include sign language interpretation.
- Permission to use a support person that can help with typing and writing during the test.
- Ensuring that test materials are available in formats that are accessible to the participant.
- Allowing extra time to prepare and complete the test.
- Providing a calm and focused environment for participants who have difficulty concentrating.

Higher Education: The State Educational Grant and Loan Scheme (SU) provides financial support for learners. Grants and loans are available to all Danish students that are above the age of 18 and attend a recognized education program. The availability of the grant is dependent on the income of the student, whether the student receive other public benefits, and whether the student have the status of a Danish citizen. The size of the grant depends on whether the student lives with their parents and if so the income of their parents. Foreign students also have access to SU if they are granted equal status with Danish citizens according to EU regulation or Danish regulation.

Reference:

[State Educational Grant and Loan Scheme \(SU and SU-lån\) | SU](#)

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Other relevant general measures, including gender equality

☒ Legislation provides for gender equality in education

☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education

- ☒ Policy measures aim to enhance gender equality
- ☒ Gender-responsive education sector planning is undertaken
- ☒ Providing positive or affirmative action measures
- ☒ Providing financial incentives and fellowships
- ☒ Teachers are trained (initial and in-service) on gender equality
- ☒ Teachers are trained to combat stigmatisation¹⁹
- ☒ Other:
- ☒ Re-entry programmes for young mothers are provided for
- ☒ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
- ☒ Curricula are rid of all stereotypes²¹ and bias
- ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ☒ Ensuring gender parity in technical and vocational training education and training (TVET)

Denmark has set up an expert group that has come up with recommendations on how the negative consequences of gender can be reduced for educational development and results in day care, elementary school and youth education. The expert group submitted their recommendations for both state and local level in April 2024.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Primary and Lower Secondary Education:

There is no compulsory curriculum for the Danish primary and lower secondary education. The so-called common objectives (Fælles Mål) is a curricular framework and consist of objectives for each subject at each level, pointing to the skills and abilities that pupils must obtain at the end of each level. However, instruction is planned locally by the teacher including decisions about which methods, materials to use, and themes to teach. The common objectives are inclusive for all genders and thus not biased in favor of one gender.

General upper secondary education:

Admission to upper secondary education in Denmark is based on academic performance and specific entry requirements. These criteria are applied uniformly to all students.

Common objective

Regarding general upper secondary education, Danish law states that the common objective of general upper secondary education programmes is to 1) Prepare the students for higher education, and 2) Ensure that the students acquire 'almendannelse', an ambiguous term that can be translated in to 'general education'. The common objective is reached by the knowledge and competences that the students acquire through the subjects and the multi-subject courses they study and through the school culture and environment. The students must achieve the abilities to actively participate in a democracy and gain an understanding of the possibilities of individually and collectively contributing to development and change etc. Teaching and the daily life of the educational institution must therefore be based on

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

‘åndsfríhed’ (freedom of spirit/mind), equality and democracy and strengthen the students’ knowledge of and respect for fundamental freedom rights and human rights – including equality between sexes.

Sex education in general upper secondary education

Students commencing general upper secondary education from the academic year 2023/2024 onwards must undergo mandatory sex education. The requirement for mandatory sex education applies to the 3-year programmes (higher technical, commercial, and general examination programmes). It also applies to the 2-year higher preparatory examination (hf). In sex education, students will have the opportunity to explore a wide range of topics such as consent, boundaries, contraception, and sexually transmitted diseases. The digital dimension, including topics like consent and boundaries on social media, can be integrated as part of the themes covered in sex education. Sex education has no set time frame but is to be taught when relevant to the students.

Postgraduate teacher education programme

The postgraduate teacher education programme (“pædagogikum”) emphasizes professional ethics and the teacher's role in fostering an inclusive and respectful classroom culture. Teachers are encouraged to be aware of their own biases and to actively work against them in their professional practice.

Furthermore, the theoretical courses of the “pædagogikum” cover a wide range of topics related to inclusive education, including strategies for creating an inclusive classroom environment that respects diversity. During the in-school training part of the programme, trainees have the opportunity to apply inclusive teaching strategies and receive feedback on their performance. They learn to adapt their teaching methods to accommodate students from diverse backgrounds and with different needs.

Students with disabilities

The Regional Council in the region where an institution is located can give priority to an applicant due to their disability, if the Regional Council assesses that it is of significant importance for the applicant to be admitted to the particular institution due to the applicant’s disability and mobility in comparison with the institution’s accessibility.

Examinees with physical and mental disabilities may be offered the opportunity to take an exam under special conditions. The exam itself is not changed – but the examinee is compensated through these special conditions, such as by being given more time for the exam or being allowed to use special aids. Both written and oral exams can be arranged with special conditions. It is the management of the institution that decides whether an examinee can be offered special exam conditions. The purpose of special exam conditions is to place examinees with a disability on an equal footing with other examinees during the exam situation.

Furthermore, Denmark has a special education scheme for young people with autism at the general upper secondary level. The special school classes have a maximum capacity of 12 students and are designed to meet specific needs of young people with autism. The Danish government has increased the amount of these special school classes from 13 to 19 in 2024.

In terms of bias and stereotypes within the curricula in upper secondary education, this may occur in certain subjects, such as literary studies, media studies and history, due to the nature of these subjects. The objective is then placing historical sources and literature in its historical context with the purpose of critically and academically discussing context, development,

consequences and so on of any bias or stereotype that might be present in the examined texts or other sources.

Vocational education and training

The subject “Psychology” contributes to developing the students and apprentices skills in understanding and respecting people’s differences on the basis of personal, social and cultural factors.

The subject “Society and health” teaches students and apprentices about factors that are important in relation to showing respect for others gender identity and sexuality counteracting sexual harassment and understanding personal boundaries.

Teachers participating in a diploma programme in vocational education have the opportunity to take a module about various prerequisites of young people and adults and their opportunities to participate. The teacher learn how to differentiate their teaching in order to strengthen the apprentices’ opportunities for participation. During this module, the teachers work with the following themes regarding gender:

- The societal context
- Young people and adults in vocational training and education - perspectives on motivation, commitment and drive
- The gender-segregated education system and labor market

The module described above is not compulsory. However, it must be emphasized that the law states that schools have to ensure a good and safe teaching environment. It is also stated in the law that the vocational education system must be organized in such a way, that it ensures that everyone who wants a vocational education has the opportunity.

Adult education and alternative learning

Sex education is compulsory at *Preparatory Basic Education (FGU)*. Compulsory sex education must ensure that students become familiar with topics such as consent, boundaries, contraception and sexually transmitted diseases.

The curricula at *Preparatory basic education (FGU)* in general promote openness to different outlooks on life.

General adult education: The teaching in general adult education is based on freedom of spirit, equality and democracy and is based on the needs and experiences of the participants.

Higher Education: Equal and free access to higher education for all: The Danish education system aims to ensure that all people acquire knowledge and competencies that qualify them to take an active part in society and contribute to its further development. Education is open to all and generally tuition-free. The most recent summer admission data from 2023 shows that 57 per cent of the 61,384 students admitted are women, while 43 per cent are men. Admission statistics for universities reveal that 52.8 per cent of the admitted students are women and 47.2 per cent are men. University colleges exhibit the largest gender disparity, with 71.2 per cent women and 28.8 per cent men. Business academies reported 54 percent men and 46 per cent women among their summer 2023 admissions.

In the initial teacher education programme, gender and equality perspectives are incorporated into the subjects *Pedagogy and General Didactics* and *Philosophy of Life*, which are mandatory for all students, and as part of the elective course *Health and Sexual Education*.

References:

Admission in Higher Education 2023:
<https://ufm.dk/uddannelse/statistik-og-analyser/sogning-og-optag-pa-videregaende-uddannelser/grundtal-om-sogning-og-optag/ansogere-og-optagne-fordelt-pa-kon-alder-og-adgangsgrundlag>

Ministerial order for the teacher training programme:
<https://www.retsinformation.dk/eli/lta/2023/374>

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

Ægteskabsloven ("The Marriage Law") §1a, §2.

Persons under the age of 18 cannot enter marriage without 1) permission from the chair of the municipality board, and 2) the parents' consent.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

²²

Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

- | | |
|---|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ý Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ý Native language instruction is ensured for national minorities |
| ☒ Educational standards are established for educational institutions run by national minorities | ý Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

If you have a foreign background, you can follow different types of education that are both aimed at jobs and education.

You can take courses in Danish at several levels.

You can also apply for admission to a course; a vocational education, a secondary education or a higher education. Several programs have preliminary courses as preparation for the actual program.

You can also have your foreign exam assessed in relation to the Danish labor market or a Danish education.

Primary and Lower Secondary Education

Denmark has only one national minority; the German minority in North Schleswig.

Special rules have been laid down in the Act on independent schools and private primary schools, etc., according to which the German minority schools are exempt from requirements for Danish as the language of instruction, minimum requirements for the number of pupils and requirements for knowledge of Danish at e.g. the teaching staff.

In addition, a special financial grant is given to German minority schools.

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

General upper secondary education

The rules within the Ministry of Children and Education's area of responsibility generally do not include formal conditions regarding residence permits as a prerequisite for admission or subsidies for education. The general principle is thus that a student's residence permit, or the possible absence of such, will not affect the student's access to rights, services, and benefits within the Ministry of Children and Education's area.

It should be noted that there are no special subsidy rules for foreign students who are admitted to upper secondary education programs. The upper secondary education programs are financed by state subsidies, and foreigners who attend upper secondary education trigger the usual per capita subsidies according to the applicable rules, just like Danish students. Therefore, funding follows each student.

Admission to upper secondary education in Denmark is based on academic performance and specific entry requirements. These criteria are applied uniformly to all students.

In terms of national minorities, the Bonn-Copenhagen declarations issued in 1955 recognize the ethnic minorities in the two countries, the Danish minority in Germany and the German minority in Denmark, respectively. The declarations are not binding according to international law, but within this framework BUVN support upper secondary schools in Denmark that provide upper secondary education in German for the German minority living in Denmark. The schools follow the Danish laws and curricula with certain moderations.

Danish law allows for private secondary schools if certain requirements are met, e.g. schools must adhere to freedom and democracy, democratic education, and respect for fundamental freedoms and human rights, including gender equality.

In terms of bias and stereotypes within the curricula in upper secondary education, this may occur in certain subjects, such as literary studies, media studies and history, due to the nature of these subjects. The objective is then placing historical sources and literature in its historical context with the purpose of critically and academically discussing context, development, consequences and so on of any bias or stereotype that might be present in the examined texts or other sources.

Vocational education and training

- Teachers participating in a diploma programme in vocational education have the opportunity to take a module about various prerequisites of young people and adults and their opportunities to participate. The teacher learn how to differentiate their teaching in order to strengthen the apprentices' opportunities for participation. During this module, the teachers work with the following themes related to ethnicity: The societal context
- Young people and adults in vocational training and education - perspectives on motivation, commitment and drive
- Pattern breaking processes, ethnicity and racialization

The module described above is not compulsory.

Adult education and alternative learning

Preparatory basic education: All teaching takes place in an inclusive learning environment. The curriculum for the subject “Danish as a second language” is for students who do not have Danish as their first language and aims to strengthen the student's communicative and intercultural competences, communication and collaboration and as a tool for cognition, learning, experience, tolerance and community. The subject must motivate the student to develop themselves, take chances and test the interlanguage both in theory and in practice. The teaching must promote the student's motivation to acquire and actively use Danish, develop language skills, awareness and strategic competence in relation to language acquisition and learning.

General adult education: The teaching in general adult education is based on freedom of spirit, equality and democracy and is based on the needs and experiences of the participants.

Adult Vocational Training: The Adult Vocational Training programmes provide specialised programs for bilingual individuals (mainly migrants and refugees with residence permit), to facilitate their integration into the Danish labour market. These programmes allow participants to combine professional training with Danish as a second language, ensuring that they gain both job-specific skills and language proficiency. The programmes are designed to be flexible, with course durations extendable by up to 25% to accommodate the needs of bilingual learners. In some courses, instruction in Danish as a second language is integrated with professional training, allowing two instructors to be present simultaneously for up to a third of the weekly teaching hours. This integrated approach ensures that participants receive comprehensive support, both linguistically and vocationally. Furthermore, the educational provider can also collaborate with an interpreter if it is necessary for the participant to benefit from the instruction.

Higher Education: Faroese and Greenlandic citizens hold Danish citizenships and can apply to higher educations in Denmark on same terms as other applicants with Danish citizenships.

The general admission requirement is an upper secondary school leaving examination. The Faroese upper secondary school leaving examination, Greenlandic upper secondary examination, Faroese higher preparatory examination, Faroese higher diploma in commerce, upper secondary vocational programme from Greenland, the Faroese higher technical diploma, higher technical diploma from Greenland meets the general admission requirement.

For Greenlandic applicants the following special scheme also applies for access to higher educations:

“The university/institution shall admit a Greenlandic applicant without admission restrictions. The applicant must prove that they meet the admission criteria set out on the website of Danish Ministry of Higher Education and Science. The criteria are set by the Ministry on the recommendation of the Government of Greenland.”

The Greenlandic special provision is outlined in the admission regulations (§20, §22, or §23, depending on the specific regulation in question). This provision mandates that the educational institution must admit a Greenlandic applicant outside of the regular admission limitations. Documentation proving the applicant's connection to Greenland is required.

Furthermore, The State Educational Grant and Loan Scheme (SU) also provides financial support for Greenlandic and Faroese students.

The State Educational Grant and Loan Scheme (SU) also provides financial support for the Danish minority in northern Germany if they choose to study in Denmark.

In the initial teacher education programme, students are instructed in intercultural competencies and the strategies to combat stigmatisation within the classroom through mandatory subjects such as *Danish as a Second Language*, *Philosophy of Life*, and *Pedagogy and General Didactics*. Furthermore, some subjects i.e. English, specifically mention intercultural competence as part of the purpose for the subject. Furthermore, certain subjects, such as English, explicitly include intercultural competence as a fundamental component of their objectives.

Even though a German minority (approximately 15,000 people) exists in Southern Jutland, the German minority does not have any special legislative rules or conditions regarding higher education.

References:

The Greenlandic special scheme is regulated in the ministerial orders on access:

Ministerial Order on Access to Business Academies and University Colleges (*Bekendtgørelse om adgang til erhvervsakademiuddannelser og professionsbacheloruddannelser*), BEK no. 56 of 10/01/2024.

Ministerial Order on Access to university programmes organised full-time (*Bekendtgørelse om adgang til universitetsuddannelser tilrettelagt på heltid*), BEK no. 51 of 14/01/2024.

Ministerial Order on Access to fine arts study programmes organized full-time (*Bekendtgørelse om adgang til videregående kunstneriske uddannelser tilrettelagt på heltid*), BEK no. 57 of 10/01/2024

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- | | |
|--|---|
| ☒ Legislation provides for the right to education of indigenous people | ☒ Financial incentives and fellowships are provided for indigenous people |
| ☒ Policy measures aim to enhance the right to education of indigenous people | ☒ Teachers are trained on intercultural education |
| ☒ Policy elaboration includes consultations with local communities | ☒ Teachers are trained to combat stigmatisation ²⁶ |
| | ☒ Multilingual and intercultural education are supported |

- ☒ The right to carry out their own educational activities is legally guaranteed for indigenous people
 - ☒ Educational standards are established for educational institutions run by indigenous people
 - ☒ Positive or affirmative action measures are provided for indigenous people
 - ☐ Other:
- ☒ Native language instruction is ensured
 - ☒ Adapting curricula and teaching and learning methods to their needs for indigenous people
 - ☒ Curricula are rid of all stereotypes²⁷ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Admission to **upper secondary education** in Denmark is based on academic performance and specific entry requirements. These criteria are applied uniformly to all students.

The Danish Constitution states that all children in Denmark have the right to receive free education at **elementary and lower secondary levels**.

This principle is applied throughout the entire education system. There is consequently free and equal access to attend public schools on primary, lower and upper secondary, technical and vocational, and higher education levels.

Higher Education: In the teacher education programme, students are instructed in intercultural competencies and the strategies to combat stigmatisation within the classroom through mandatory subjects such as Danish as a Second Language, Philosophy of Life, and Pedagogy and General Didactics.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- ☒ Legislation provides for their right to education
- ☒ Policy measures aim to enhance their right to education
- ☒ Inclusion in mainstream schools is ensured
- ☒ Financial incentives and fellowships are provided for
- ☒ Auxiliary assistance is provided

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

- ☒ Positive or affirmative action measures are provided for
- ☒ All administrative barriers to access education are removed
- ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for
- ☒ Teachers are specifically trained to ensure their inclusion
- ☒ Teachers are trained to combat stigmatisation³⁰
- ☐ Other:
- ☒ Multiple and flexible learning pathways³¹ are provided
- ☒ Curricula are rid of all stereotypes³² and bias
- ☒ Accelerated learning programmes are provided
- ☒ Non-formal and/or alternative education programmes are provided
- ☒ Language classes to newcomers are provided for
- ☒ Multilingualism and intercultural education are encouraged

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The rules within the Ministry of Children and Education's area of responsibility generally do not include formal conditions regarding residence permits as a prerequisite for admission or subsidies for education. The general principle is thus that a student's residence permit, or the possible absence of such, will not affect the student's access to rights, services, and benefits within the Ministry of Children and Education's area.

However, on July 1st 2024, a new scheme will come into force for foreigners who lose, or who have previously lost, their residence permit in Denmark.

The scheme gives certain foreigners who lose their basis for residence and who are enrolled in or currently studying in an area where there is a shortage of labor, the opportunity to continue their residence and education in Denmark.

The scheme also implies that certain foreigners who have lost or will lose their residence permit before the law enters into force on 1 July 2024 will, under certain conditions, be given the opportunity to continue their residence in Denmark if they were admitted to or currently in a training in an area where there is a shortage of labour. It will, among other things, be a condition for being able to obtain a residence permit, that the alien's original residence permit was refused extension or revoked, or that the right of residence according to EU rules was found to have ceased in the period from 1 July 2020 to and including 30 June 2024.

At the same time, a scheme is being introduced to change education for those foreigners who obtain a residence permit under the education linking scheme, but who wish to change to another education in an area where there is a shortage of labour.

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

A foreigner who is granted a residence permit under the education linking scheme or with a view to changing education will also be granted a residence permit for a maximum of 6 months with a view to seeking employment in this country after completing the education

It should be noted that there are no special subsidy rules for foreign students who are admitted to upper secondary education programs. The upper secondary education programs are financed by state subsidies, and foreigners who attend upper secondary education trigger the usual per capita subsidies according to the applicable rules, just like Danish students. Therefore, funding follows each student.

Recently, a policy targeting refugees from Ukraine was introduced. Upper secondary education programmes now have the option to use English or Ukrainian as the language of instruction and to organize the teaching as distance learning.

Primary and Lower Secondary Education

In general

According to the constitution, all children of compulsory school age have the right to free education in primary and lower secondary school. Parents or guardians who themselves ensure that the children receive education that can measure up to what is generally required in the primary school, are not obliged to let the children be taught in primary and lower secondary school.

The law of the Danish “folkeskole” states that every child who lives or resides in this country is obliged to attend school according to the law of the Danish “folkeskole”, unless it is covered by provisions in other legislation. The same applies to children who must stay in this country for at least 6 months.

The municipal board is responsible for ensuring that every child in the municipality who is required to attend school is enrolled in the primary and lower secondary school or receives education that is commensurate with what is generally required in the primary school. It is also clear from The law of the Danish “folkeskole”, that it is the municipal council’s responsibility to provide education in primary and secondary school and 10th grade for children and young people under the age of 18 who live or stay in the municipality and whose parents want them admitted to primary and lower secondary school.

The above means that the municipal council has an obligation to ensure that children subject to education who live or stay in the municipality receive education. What is decisive in this context is whether the child actually lives or resides in the municipality, and not whether the child has legal residence in Denmark, or whether the child e.g. is registered in CPR (The Central Office of Civil Registration). This obligation applies unless the child is covered by provisions on compulsory education in other legislation.

The Folkeskole law states that other legislation, e.g. covers the education obligation that follows from the rules of the Aliens Act.

The Folkeskole law thus applies until the time when a child is covered by an offer of education in accordance with the immigration authorities' rules in this regard. If a child of compulsory education age lives or resides in a municipality, without the child being covered by the rules on education in the Aliens Act, the child will consequently be covered by the rules in the Primary School Act on compulsory education.

It will thus be the municipality's obligation to ensure that the child in question receives education in the public school or receives education that is commensurate with what is generally required in the Public Schools Act. This also applies to children of asylum seekers and foreigners who do not have legal residence in Denmark within the meaning of the Aliens Act and are either not under the care of the Danish Immigration Service or are not affiliated with an asylum accommodation facility.

Regarding displaced children and youth from Ukraine

In May 2022, the Danish parliament adopted temporary legislation intended to provide flexibility for municipalities in their reception of displaced children and youth from Ukraine. The provisions have been extended until the 31st of July 2024, and most provisions further extended until the 17th of May 2025. The provisions are not mandatory, but give municipalities a range of options in the reception of displaced children and youth from Ukraine. Among these, it is possible e.g. to use Ukrainian or English as the language of instruction, to use long-distance, virtual education from Ukraine, to use teaching materials from Ukraine, to employ Ukrainian-speaking personnel.

Higher Education: At institutions under both the Ministry of Higher Education and Science and the Ministry of Culture, the following groups have access to full-time education without tuition fees, as well as open education and part-time education with state subsidies and partial tuition fees:

- Refugees with convention status (Aliens Act § 7, subsection 1, and § 8, subsection 1)
- Refugees with protection status (Aliens Act § 7, subsection 2, and § 8, subsection 2)
- Family reunified individuals who have been granted a residence permit under the Aliens Act § 9, subsection 1, or § 9 c, subsection 1, due to a familial connection to refugees with a residence permit under the aforementioned provisions
- Persons with a residence permit based on temporary protection status (Aliens Act § 7, subsection 3).

At institutions under the Ministry of Higher Education and Science, there is also access to full-time education without tuition fees, as well as open education and part-time education with state subsidies and partial tuition fees for:

- Persons with a temporary residence permit under the provisions of the Act on Temporary Residence Permit for Persons Displaced from Ukraine (Act no. 324 of March 16, 2022)
- Persons with a temporary residence permit under the provisions of the Act on Temporary Residence Permit for Persons in Afghanistan who have assisted Danish authorities, etc. (Act no. 2055 of December 16, 2021).
- Persons that fall within Section 2(2) (refugees), (3) (aliens granted family reunification with a refuge) or (4) (other aliens granted family reunification) of the Aliens Act and are admitted to an education programme in Denmark can apply for equal status with Danish citizens in regards to The State Educational Grant and Loan Scheme (SU).

Reference:

Integration in Higher Education:
<https://ufm.dk/uddannelse/integration-pa-uddannelsesområdet>

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Primary and Lower Secondary Education

Overall, all children have the right to free education, including children with disabilities.

In Denmark, a cornerstone in ensuring equal access to education is special pedagogical assistance to children with special educational needs. All children who are assessed to be in the target group have the right to receive special pedagogical assistance.

This assistance aims to ensure the participation of students with special educational needs in the general classes. Thus, support must be given, whenever possible, in general classes. If a student is not able to participate in general education, they have the right to receive segregated special education in special classes or special schools.

It is important in the Danish approach to learners with special educational needs to make sure that learning environments are inclusive and that the emphasis is on the entire class community,

³³ Supra note 15.

³⁴ Supra note 16.

and not just on the individual learners with special educational needs. Therefore, it is a common task to make sure that learning environments are adapted to ensure that all children can develop both in terms of learning and in terms of developing their social skills.

Students who need assistance to overcome practical difficulties related to their learning must receive personalized assistance. One such example is the Danish approach to students with dyslexia. In recent years, there has been a strong focus on diagnosing students with dyslexia and on making sure they get access to tools that can assist them in participating. These kinds of individualized learnings support measures make sure that students can participate in learning activities in the first place.

A recent political agreement has initiated measures to provide educators and teachers with better opportunities to strengthen their pedagogical skills. This aims to help educators and teachers more effectively handle the challenges schools face with student well-being issues and classroom disruptions. Additionally, special education was introduced as a mandatory subject in teacher training programs in 2022.

General Upper Secondary Education

Students with disabilities

The Regional Council in the region where an institution is located can give priority to an applicant due to their disability, if the Regional Council assesses that it is of significant importance for the applicant to be admitted to the particular institution due to the applicant's disability and mobility in comparison with the institution's accessibility.

Examinees with physical and mental disabilities may be offered the opportunity to take an exam under special conditions. The exam itself is not changed – but the examinee is compensated through these special conditions, such as by being given more time for the exam or being allowed to use special aids. Both written and oral exams can be arranged with special conditions. It is the management of the institution that decides whether an examinee can be offered special exam conditions. The purpose of special exam conditions is to place examinees with a disability on an equal footing with other examinees during the exam situation.

Furthermore, Denmark has a special education scheme for young people with autism at the general upper secondary level. The special school classes have a maximum capacity of 12 students and are designed to meet specific needs of young people with autism. The Danish government has decided to increase the amount of these special school classes by almost 50 percent in 2024.

In special cases, a general upper secondary school may organize 2-year programme over a 3-year period and 3-year educational programme over a 4-year period for students who, due to disabilities or equivalent difficulties, are prevented from following the normal course of education.

In terms of bias and stereotypes within the curricula in upper secondary education, this may occur in certain subjects, such as literary studies, media studies and history, due to the nature of these subjects. The objective is then placing historical sources and literature in its historical context with the purpose of critically and academically discussing context, development, consequences and so on of any bias or stereotype that might be present in the examined texts or other sources.

Adult education and alternative learning

Preparatory Basic Education offers an inclusive learning environment where students are enabled to participate in lessons equally on their own level. The teaching of students with dyslexia and students with other needs that require special consideration or support must be holistic and, as far as possible, take place through the inclusive learning environment. The teaching must support and motivate the use of compensatory aids if appropriate. In Preparatory Basic Education, students with special needs are eligible for special educational aids like reading-writing technology, specially designed teaching materials, sign language interpretation and written interpretation.

The curricula at *Preparatory basic education* in general promote openness to different outlooks on life.

Specially planned youth education: The education and counselling is specifically organized to mitigate or limit the impact of the individual student's disability, e.g. methods and aids that can compensate for the disability in order for the citizen to better participate in society. Curricula are individually planned for the student.

General adult education: Adults with dyslexia, adults who lack basic skills in reading, mathematics, IT and English as well as adults who need to improve their skills at primary school level have access to the general adult education offers; i.e. dyslexia education for adults (OBU), preparatory adult education and general adult education. Participants with disabilities or similar difficulties who need special educational assistance are offered relevant support in the form of e.g. aids and instructions for their use, personal assistance and secretarial assistance, specially designed teaching materials and sign language interpretation and writing interpretation.

Adult Vocational Training

Individuals with disabilities attending adult vocational training are entitled to receive special educational assistance (SPS) tailored to their needs. This may include one or more of the following types of support:

16. Assistive devices and instructions of use.
17. Individualised assistance.
18. Allocation of support hours.
19. Specially designed educational materials.
20. Interpretation services for sign language and written text.

The assigned educational support can be used for various purposes such as instruction, field trips, tests and traineeship. Furthermore, if a participant with disabilities enrolls in another educational programme that qualifies for special educational assistance, they may continue to receive support. The adult education provider is obliged to provide the necessary resources for participants with physical or mental disabilities. This can be achieved in different ways:

- Providing access to special educational devices/tools and support during the test.
- Assistive technology can include a tablet or laptop with synthetic speech and a scanner, as well as training materials in electronic form. Assistive technology is particularly relevant for participants with reading, visual or hearing impairments. For participants who are deaf, the support can include sign language interpretation.
- Permission to use a support person that can help with typing and writing during the test.

- Ensuring that test materials are available in formats that are accessible to the participant.
- Allowing extra time to prepare and complete the test.
- Providing a calm and focused environment for participants who have difficulty concentrating.

Higher Education: The teacher education programme and the programme in Social Education (pedagogue) include dedicated subjects on pedagogy, special education, and general didactics, designed to develop school professionals' abilities to create inclusive classrooms and teach pupils with special needs. This training is mandatory for all students and encompasses theoretical foundations as well as practical strategies for accommodating the pupils diverse learning needs. In the Teacher Education programme, the subject of *Educational Psychology, Inclusion, and Special Education* is mandatory for all students. Additionally, students have the option to select *Special Education* as one of their three main subjects.

People with disabilities who receive the State Educational Grant for higher education or vocational training can apply for an additional student grant for persons with disabilities, which is intended to assist students who cannot work alongside their studies due to their disability. Students with functional impairment can receive Special Educational Support, so they are able to conclude a higher education programme on equal terms with other students.

In the executive orders concerning universities, university colleges, and academy colleges, these institutions are authorized to grant dispensations under special conditions, such as for various types of disabilities. Furthermore, in the executive order on Examinations and Tests for Professional and Vocational Higher Education, it is stated that the educational institution may grant exemptions from its own established examination or test conditions by offering special conditions to students with physical or mental disabilities. This is useful when the institution assesses that this is necessary to equalize students with disabilities with other students.

Denmark participated in ratifying the United Nations Convention on the Rights of Persons with Disabilities in 2009 which marked a significant step in the country's commitment to promoting and protecting the rights of persons with disabilities. Furthermore, Denmark has the executive order on Prohibition against Discrimination in the Labor Market, etc. which proclaims rights to education for persons with disabilities.

References:

Report on better condition for students with disabilities:
<https://ufm.dk/publikationer/2022/bedre-vilkar-for-studerende-med-funktionsnedsaettelser>

Bekendtgørelse om uddannelsen til professionsbachelor som lærer i folkeskolen:
<https://www.retsinformation.dk/eli/lta/2023/374>

Bekendtgørelse om erhvervsakademiuddannelser og professionsbacheloruddannelser:
<https://www.retsinformation.dk/eli/lta/2021/2672>

Bekendtgørelse om eksamener og prøver ved professions- og erhvervsrettede videregående uddannelser: <https://www.retsinformation.dk/eli/lta/2022/863>

Bekendtgørelse af lov om forbud mod forskelsbehandling på arbejdsmarkedet m.v.1):
<https://www.retsinformation.dk/eli/lta/2024/399>

Bekendtgørelse af lov om statens uddannelsesstøtte (SU-loven):

<https://www.retsinformation.dk/eli/lta/2023/395>

Bekendtgørelse om statens uddannelsesstøtte (SU-bekendtgørelsen):

<https://www.retsinformation.dk/eli/lta/2024/97>

Bekendtgørelse af lov om specialpædagogisk støtte ved videregående uddannelser (SPS-loven):

<https://www.retsinformation.dk/eli/lta/2022/1507>

Bekendtgørelse om specialpædagogisk støtte på videregående uddannelser (SPS-bekendtgørelsen):

<https://www.retsinformation.dk/eli/lta/2022/1005>

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

☒ Financial incentives and fellowships for school enrolment are provided

☒ Teachers are trained to combat stigmatisation³⁵

☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education

☒ Curricula are rid of all stereotypes³⁶ and bias

☒ Positive or affirmative action measures are provided

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Education in Denmark is free for all children and young people from primary school to higher education, including university. This removes a significant financial barrier that might prevent access to education.

In Denmark education in primary and lower secondary are free for all pupils. In addition, schools are obliged to make teaching materials available free of charge.

There is no compulsory curriculum for the Danish primary and lower secondary education. The so-called *common objectives* (Fælles Mål) is a curricular framework and consist of objectives for each subject at each level, pointing to the skills and abilities that pupils must obtain at the end of each level, but instruction is planned locally by the teacher including decisions about which

³⁵ Supra note 15.

³⁶ Supra note 16.

methods and materials to use and themes to teach. The common objectives are inclusive for all students and thus not biased in favor of any economic level of household.

The costs of educational materials for general upper secondary education and vocational education are covered by the institution. However, the institution may decide that students and course participants themselves acquire a portion of the educational materials to a limited extent. The extent cannot exceed 2,500 DKK for a student or course participant in an general upper secondary education or the basic course of a vocational education.

For students and apprentices at upper secondary education and some parts of vocational education and training, it is possible to get a transportation discount (via the so-called “Ungdomskort”).

The curricula at *Preparatory basic education* in general promote openness to different outlooks on life.

In terms of bias and stereotypes within the curricula in upper secondary education, this may occur in certain subjects, such as literary studies, media studies, social studies and history, due to the nature of these subjects. The objective is then placing historical sources and literature in its historical or political context with the purpose of critically and academically discussing context, development, consequences and so on of any bias or stereotype that might be present in the examined texts or other sources.

Higher Education: The State Educational Grant and Loan Scheme (SU) provides financial support for learners. Grants and loans are available to all Danish students that are above the age of 18 and attend a recognized education program. The availability of the grant is dependent on the income of the student, whether the student receive other public benefits, and whether the student have the status of a Danish citizen. The size of the grant depends on whether the student lives with their parents and if so the income of their parents. Foreign students also have access to SU if they are granted equal status with Danish citizens according to EU regulation or Danish regulation.

Students in full-time upper secondary and higher education may obtain discount on public transportation by applying for a public transportation pass known as “Ungdomskort”.

Students who receive the State Educational Grant and are single parent can receive an additional single parent study grant.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

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2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Please see below.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ☒ Pre-primary education is **not** compulsory.

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- ☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Parents pay a maximum of 25 % of the budgeted gross operating expenditure for ECEC services for children from the age of 26 weeks to six years. Families receive a sibling discount. The municipal council must grant subsidies based on the parents’ financial situation, in some cases covering up to the full amount of the costs for day-care. There is no charge for day-care if the personal income (gross income net of general social security contributions) is below DKK

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

200.301. From DKK 200.301 to DKK 204.741 the payment is 5% of the full rate. From that income level, the payment is linearly increased until the full price is paid at a personal income of DKK 622.200, Furthermore parents of children with socioemotional treatment needs can have a supplemental subsidy.

Pre-primary education is compulsory for 1-year old children in vulnerable housing areas who are to attend a public day-care institution for 25 hours per week. The intention is to ensure that more children develop their language skills and readiness to learn as early as possible. If parents choose not to enroll their children in the learning program, they can do it in their own homes – that will require that they are able to develop their children’s Danish language skills and development.

- Day-care, Leisure and Club Activities (Children and Young Persons) Act (Consolidation Act No 55 of 17 January 2024). [Dagtilbudsloven \(retsinformation.dk\)](https://retsinformation.dk)

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

The year the child turns 6. Primary and lower secondary education is from 0th to 9th grade (10 years) with an optional 10th grade.

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

All children have the right to free primary education. In Denmark, ten years of education is mandatory. This does not entail the duty to attend schools, because home schooling is an option that parents can choose. However, almost all students attend the public primary and lower secondary schools (*Folkeskole*) or private schools.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☐ Disparity in learning outcomes

☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Free primary and lower secondary education in Denmark goes several centuries back. Today, access is universal, equal and inclusive, and overall the Danish primary and lower secondary education is of high quality and has strong learning outcomes.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Lower secondary education is part of the compulsory primary and lower secondary education, please see above.

- Please provide the age of enrolment and duration of upper secondary education:

Upper secondary education programmes, also referred to as youth education programmes, can be divided into:

- General upper secondary education programmes, which primarily prepare students for higher education:
 - Higher General Examination Programme (STX Programme). Duration: 3 years
 - Higher Technical Examination Programme (HTX Programme). Duration: 3 years
 - Higher Commercial Examination Programme (HHX Programme). Duration: 3 years
 - Higher Preparatory Examination Programme (HF Programme). Duration: 2 years

First-year students at the 3-year programmes (STX, HTX, and HHX) are usually 15-17 years old.

- In vocational education and training (VET) programmes, which primarily prepare students for a career in a specific trade or industry the average age for apprentices was 25.8 in 2023.
- EUX combines general upper secondary education and vocational education and training, giving access to higher education as well as to skilled jobs. Eux is primarily directed towards for students who apply directly from primary school, but there is no restrictions according to age.
- The main student target group for *Preparatory basic education* are aged between 16 and 25 years of age, but students may be enrolled at an older age if they wish for it and the municipality estimates them to be in the target group for the education. Most students enroll at between 16 and 18 years of age.
- The duration of *Preparatory Basic Education* is individual. The mean duration of enrollment is estimated at about 14 months, but students can participate for longer or shorter depending on the municipality's estimation of need.
- The target group for *Specially planned education (STU)* is below 25 years old at enrollment. The duration of the education is 3 years. The vocational education and training programmes consist of more than 3000 short vocational training courses. The purpose of these are to provide unskilled and skilled workers with needed competencies in order to keep up with the demands of the labour market. The adult vocational training programmes are also accessible for unemployed citizens in case they need to improve their vocational skills in order to increase their employment opportunities. Depending on the situation, the government and/or municipality can cover the cost of participation for unemployed citizens. Unemployed, both insured and uninsured, continue to receive benefits while participating. Furthermore, selected training schemes can be used to upskill unemployed citizens (e.g. targeting refugees and migrants) to specific professions in sectors with potential job opportunities. If the training scheme includes refugees and migrants, it is possible to combine the vocational training modules with language lessons.

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☒ Upper secondary education is not compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Folkeskoleloven ("Public Schools Act")

The Danish Constitution

Lov om de gymnasiale uddannelser ("Law on Upper Secondary Education")

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

[Bekendtgørelse af lov om arbejdsmiljø](#)

[EU-direktiv 94/33/EF](#)

[Bekendtgørelse om unges arbejde](#)

The provision is enforced by the Danish Working Environment Authorities supervision of the relevant companies. If it is found that there is a young person employed who, according to the regulations on the subject, are not allowed to work, the company will

be ordered to stop the young person's work immediately. In addition, the Danish Working Environment Authority may send an indictment to the police regarding criminal proceedings against the company for violating the Working Environment Act (if the conditions for this are otherwise present). This may result in a fine.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states

³⁹ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

⁴⁰ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Higher Education: Agency for Higher Education and Sciences' total public funding in 2022

15 billion DKK for higher education
20 billion DKK for state education grant

Higher education in Denmark is free for Danish students, students from the EU/EEA and Switzerland and for students who, according to EU law, are entitled to the same status as Danish citizens. Similarly, if the student is participating in an exchange programme, then the student can study in Denmark for free.

Higher education is also free for students who, at the time of application:

- have permanent residence
- have temporary residence with the possibility of obtaining permanent residence;
- have a residence permit in accordance with Section 1 §9 m of the Aliens Act as the accompanying child of a foreign national who has a residence permit on the basis of employment etc., see Section 1 §9 a of the Aliens Act. (Danish text)

Convention refugees and protected persons under the Aliens Act, as well as relatives of such persons, are encouraged to contact the relevant higher education institution or university for guidance on payment (tuition fees).

All other students must pay tuition fees.

Admission to higher education in Denmark is based on relevant academic qualifications and is regulated in ministerial orders on access:

Ministerial Order on Access to Business Academies and University Colleges ([Bekendtgørelse om adgang til erhvervsakademiuddannelser og professionsbacheloruddannelser](#)), BEK no. 56 of 10/01/2024.

Ministerial Order on Access to university programmes organised full-time ([Bekendtgørelse om adgang til universitetsuddannelser tilrettelagt på heltid](#)), BEK no. 51 of 14/01/2024.

Ministerial Order on Access to fine arts study programmes organized full-time ([Bekendtgørelse om adgang til videregående kunstneriske uddannelser tilrettelagt på heltid](#)), BEK no. 57 of 10/01/2024

When assessing applications on admission, universities and other educational institutions under Ministry of Higher Education and Science are also obligated to follow the Public Administrative Act and the legal principles set in the act which includes the rule of law. This contains a prohibition against direct and indirect discrimination.

Applicants to and students at higher education have the right to complain to the Agency for Higher Education and Science concerning legal aspects in decisions made by the institutions. Reviewing of legal aspects means that the agency determines whether the institution has processed the case in accordance with applicable law including the Public Administrative Act.

Applicants to and students at higher education also (in some cases) have the possibility to file a complaint to the Board of Equal Treatment (in Danish: Ligebehandlingsnævnet): <https://ast.dk/naevn/ligebehandlingsnaevnet>

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes

- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

There are a number of opportunities for adults to receive education and refresh their competences. Denmark has a long tradition of improving the competences for both unemployed and employed. This particularly to the opportunities for unskilled and skilled workers. In general In Denmark, there is a general focus and political support for lifelong learning, which also involves the social partners.

There are approximately 3 00 different adult vocational training programmes. They are mainly short vocational training programmes, the duration of which normally varies from half a day to 14 days, in average 3 days. It is possible to combine adult vocational training programmes in the same job area or to supplement a programme with more specialized programmes within a field.

There are user fees on technical, commercial, ICT, language and social communication, management etc. adult vocational training programs. On average the user fee for adult vocational training programs is about 15 per cent of the total expenditure. The expenditure for user fee is normally paid by the employers. Courses in the social and health service, individual competence assessment and participation by the unemployed who attend individually selected programmes for 6 weeks are free of user fees.

Further more there are three programmes within general adult education targeted adults who have not received or completed the whole period of their primary education, who need to strengthen their basic skills in reading, mathematics, IT and English or who have dyslexia. Participants with disabilities or similar difficulties who need special educational assistance are offered relevant support in the form of e.g. aids and instructions for their use, personal assistance and secretarial assistance, specially designed teaching materials and sign language interpretation and writing interpretation.

Participation in reparatory adult education and dyslexia education for adults is free of charge whilst participation in general adult education is subject to a participation fee of normally 140 DDK – 1430 DDK.

By political tripartite agreement – entered into between the government and the social partners – concluded in September 2024, it was decided to strengthen the area of adult education further with long-term investments. In the agreement, it was decided that a national alliance would be established on the promotion of basic skills between the parties to the agreement and 10-20 large employers in Denmark. Employers in the alliance undertake to work systematically with employees' basic skills. In addition, a national strategic investment in digital learning has been decided as well as a scheme that supports employees' adjustment in the labor market.

Higher Education: The State Educational Support for Adults Scheme (SVU) provides financial support for adults in the Danish workforce who participate in supplementary education or continuing education and training.

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

The adult education system is structured to meet the needs of individuals and society to secure a well-educated workforce. For vocational adult and continuing education, this stems from the vocational education system and provides the opportunity for adults to take short courses that partly ensure necessary upskilling that gives access to the labor market, and partly ensure the necessary upskilling and specialization to meet changing needs on the labor market, e.g. in the form of technological development and the green transition.

For general adult and continuing education, which provides general competences, e.g. in basic reading and writing skills, arithmetic, IT and English, these aim to give adults the necessary basic competences to be able to start other education or to cope in the labor market, where basic skills are to a greater extent a prerequisite.

Overall, the adult education system is state-funded and subject to quality control and supervision, and the unemployed and employed are supported in participating in education via the possibility of obtaining compensation/financial support for participation

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that

are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☐ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

General upper secondary education

At general upper secondary schools, the number of students in each class cannot exceed 28, measured as an average among classes of the same student-year.

It appears from the Education Environment Act §1 that pupils, students and other participants in public and private education have the right to a good education environment, so that education can take place in a fully responsible manner in terms of safety and health. The teaching environment at schools and educational institutions (educational sites) must promote the participants' opportunities for development and learning and therefore includes the psychological and aesthetic environment of the educational institution.

Vocational education and training

The Ministry of Children and Education carries out an annual quality inspection of vocational education and training. The purpose of the inspection is to identify schools with persistent quality challenges. As a part of the inspection, there is a focus on parallel society problems. Schools that are selected for inspection are offered a counselling course with consultants from BUVM.

Higher Education: Danish quality assurance includes accreditation of higher education institutions. The standard and quality of educational provision in the Danish education system is assured by a number of elements, including:

- Common rules and guidelines (curricula) specifying the aims, contents and duration of programmes and individual subjects.
- A testing and examination system using national boards of external examiners.
- Ministerial approval of the provision of education and varying degrees of monitoring in the different educational areas.
- Mandatory accreditation of higher education institutions by the Danish Accreditation Institution.

Denmark has, as part of the Bologna Process, implemented the European Standards and Guidelines for the quality assurance of the higher educations (ESG), and all public higher education institutions and study programmes must meet these international quality and relevance standards.

References:

<https://ufm.dk/en/education/the-danish-education-system/quality-assurance>

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.

- ☐ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Higher Education: In 2022, a new reform of the teacher education programme was introduced, emphasizing stronger professional progression and cohesion between theory and practice.

The three main focuses of the reformed teacher education programme were:

- Integration between core subjects and practical training/internships to strengthen the interplay between theory and practice.
- Early practical training in the programme, consisting of one day a week.

Emphasis on progression and the establishment of strong learning environments through class structure and more mandatory elements.

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

Primary and Lower Secondary Education

There is no compulsory curriculum for the Danish primary and lower secondary education. The so-called *common objectives* (Fælles Mål) is a curricular framework and consist of objectives for each subject at each level, pointing to the skills and abilities that pupils must obtain at the end of each level, but instruction is planned locally by the teacher including decisions about which methods and materials to use and themes to teach. Democratic Citizenship and human rights are highlighted in Common Objectives within the following subjects: social studies, history and health, sex and family life education.

In addition, there is a canon in history, which describes a number of historical events, which are compulsory to teach. These events includes introduction of women's suffrage, the Holocaust and the The UN's Universal Declaration of Human Rights – events to educate children in the introduction of human rights and thus help to prevent discrimination.

Finally, the object clause in the law of “folkeskole” also sets as a fundamental goal for the public school to provide the pupils with an understanding of different cultures.

General upper secondary education

Regarding general upper secondary education, Danish law states that the common objective of general upper secondary education programmes is to 1) Prepare the students for higher education, and 2) Ensure that the students acquire ‘almendannelse’, an ambiguous term that can be translated in to ‘general education’. The common objective is reached by the knowledge and competences that the students acquire through the subjects and the multi-subject courses they study and through the school culture and environment. The students must achieve the abilities to actively participate in a democracy and gain an understanding of

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

the possibilities of individually and collectively contributing to development and change etc. Teaching and the daily life of the educational institution must therefore be based on 'åndsfrihed' (freedom of spirit/mind), equality and democracy and strengthen the students' knowledge of and respect for fundamental freedom rights and human rights – including equality between sexes.

Vocational education and training

The subject "Society" contributes to developing the students and apprentices skills to participate as an active, responsible and proactive citizen in a democratic society in an internationalized world. The apprentices learn about rights in the workplace/democratic rights.

It also appears from the Act on Vocational Training that the Minister for Children and Education that this education system must be organized in such a way that it contributes to developing the education seekers' interest in and ability to actively participate in a democratic society and contribute to their personal development, character development and professional pride.

Higher Education: The Ministry does not define the curriculum for higher education programmes. However, certain subjects within the teacher education, notably *Pedagogy and General Didactics* and *Philosophy of Life*, include areas of content and learning objectives where students are expected to develop an understanding of human rights. Furthermore, it is stated in the executive order on the Social Education (pedagogue) programme that all students must know relevant international conventions.

References:

<https://www.retsinformation.dk/eli/lta/2023/374>

<https://www.retsinformation.dk/eli/lta/2017/354>

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. *Please specify:*

At all levels of education in Denmark the goal is inclusive quality education for all in a safe and supportive environment free from discrimination of any kind. The private schools must measure up to the requirements in the legislation that regulates the public primary and lower secondary

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

education. Thus, the abovementioned provisions prohibiting discrimination also applies to private schools.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

There is a long-standing tradition in Denmark of having strong private schools that can provide an alternative to public primary and lower secondary education. As mentioned above, private education must measure up to the requirements in the legislation that regulates the public primary and lower secondary education.

The amount of children attending private schools has been rising in recent years but is around 20 percent, meaning that the private schools are not close to supplanting public education.

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

The educational legislation does not limit the parents/guardians' right to provide religious or moral education for their children at home.

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☐ Registration
- ☒ State monitoring and inspections
- ☐ Qualifications of teachers
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☒ School fees
- ☐ School closures
- ☐ Other

- [Please elaborate:](#)

Undervisningsmiljøloven (“Law on Education Environment”): [Undervisningsmiljøloven \(retsinformation.dk\)](https://retsinformation.dk/retsinfo/undervisningsmiljo/)

Friskoleloven (“Law on Free Schools”): [Friskoleloven \(retsinformation.dk\)](https://retsinformation.dk/retsinfo/friskoleloven/)

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Higher Education: The Danish Digitalization Strategy (2024-2027) holds a strong focus on digital capacity building among educators in different fields of study at higher educational institutions. Both regarding the educator’s digital competencies as well as their abilities to facilitate learning processes and improve students' learning outcomes with the use of digital technologies. This can also include digital education to support student inclusion, for instance through adaptive learning technologies.

Also, the strategy holds a strong focus on the up-and-reskilling of IT professionals. To support access to continued learning, higher educational institutions are encouraged to develop hybrid and other flexible educational formats.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

Moreover, the strategy has an initiative focusing on technological literacy for educators in teacher education to support digital inclusion and knowledge about digital technologies among all pupils in primary schools.

Reference:

<https://digst.dk/nyheder/nyhedsarkiv/2024/februar/regeringen-har-indgaaet-aftale-om-en-digitaliseringsstrategi-for-danmark/>

- ☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

In 2023 the Ministry for Children and Education published recommendations on the use of screens in general and vocational upper secondary education and FGU. The recommendations aim to minimize the risk of students and apprentices being distracted by digital devices during lessons. The purpose of the recommendations is also to provide a framework for dialogue on how to handle challenges with digital distraction at each school and to work towards a balance between digital and analogue teaching.

The Ministry of Children and Education is currently in the process of developing recommendations for how generative AI can be included in a meaningful way in teaching at schools. The recommendations are supposed to ensure that the new technology provides

⁴⁵ Lack of internet connection, basic infrastructure or devices.

value to the students' learning processes, and the work currently consists of setting up a reference group that can assist BUVM in the development of the recommendations.

In Denmark, there is no compulsory curriculum for the Danish primary and lower secondary education. Instead, instruction is planned locally by the teacher – including decisions about which methods, materials to use, and themes to teach. This also applies for the use of digital technology in education.

It follows from the *Folkeskole* legislation (§ 3 stk. 2 & § 3 a) that students who need assistance to overcome practical difficulties related to their learning are to receive personalised assistance. This also includes IT-equipment, i.e. that students with permanent hearing loss are provided with technological equipment so they can follow the teachings.

Recently, the current government and the signatory parties to the agreement on the public school act has agreed to integrate “Technology Comprehension” as a perspective in traditional subjects in the primary and lower secondary school, as well as establishing “Technology Comprehension” as an elective course in the lower secondary school. The purpose is to ensure that students are well equipped to reflect critically on the usage of, as well as make use of new digital technologies.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and

improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available” (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. [Please provide the link:](#)

The Ministry of Children and Education supervises the educational institutions on an ongoing basis to ensure that the educations are of a sufficiently high quality. In addition, regular well-being measurements take place in the youth programs to ensure professional and social well-being in the programs. The figures are published i.a. on the ministry's website:

[Uddannelsesstatistik | Børne- og Undervisningsministeriet](#)

The Agency for Education and Quality has oversight with the quality of the education on primary, lower and upper secondary schools and audits finances and adherence to fiscal rules and guidelines

[Tilsynsplaner og tilsynsberetninger - Styrelsen for Undervisning og Kvalitet \(stukuvvm.dk\)](#)

Higher Education: The Ministry of Higher Education and Science cooperates with Statistics Denmark in the systematic and comprehensive collection and dissemination of data on the higher education system. This data collection encompasses a wide range of metrics, including admission rates, graduation rates, academic performance, and employment outcomes of graduates. By making this information publicly available, the ministry ensures transparency and accountability within higher education institutions. Through accurate data, the Ministry of Higher Education and Science enables institutions to benchmark their performance against national and international standards.

References:

<https://datavarehus.ufm.dk/>

<https://ufm.dk/en/research-and-innovation/cooperation-between-research-and-innovation/open-access/data/data-in-denmark/data-in-denmark>

<https://datavarehus.ufm.dk/>

☒ Monitoring processes are participatory, inclusive and regular.

☒ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☒ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Primary and Lower Secondary Education

Monitoring is always taking place in dialogue with the educational institutions in question.

Policy development in Denmark in recent years on primary and lower secondary education has happened in an environment of sustained dialogue between the government and central stakeholders.

Financial resources to municipalities, who are responsible for the public primary and lower secondary education, are allocated centrally through the yearly state budget (*Finansloven*). The yearly agreement between the government and the municipalities regulate the overall framework for municipal budgets.

There is a high degree of local autonomy in the Danish school system, meaning that municipalities make priorities within the overall economic framework to make sure resources are allocated efficiently and according to local needs.

Higher Education: The higher education institutions receive a lump sum, which they have autonomy to spend according to their priorities in accordance with the objectives stipulated for the education institutions.

The higher education institutions are covered by the Act on the accountancy of the state etc. and the Ministry of Finance's economic administrative guidance, which stipulate regulations regarding the institutions' economic administration.

The higher education institutions submit an annual report, accounting data, and auditor's records to the Danish Agency for Higher Education and Science.

Governance **dialogue:**

The Agency of Higher Education and Science holds a yearly governance dialogue process with higher education institutions. The governance dialogue aims to maintain ongoing communication and collaboration with higher education institutions in Denmark. The purpose of this dialogue is to set strategic goals and to follow up on strategic framework agreements between the Ministry of Higher Education and Science and the individual institutions.

The primary objective of the governance dialogue is to promote the strategic development of institutions and ensure they meet the political objectives and quality standards set for the education sector. This involves entering into agreements on specific targets and initiatives that the institutions must work towards. These goals are set in collaboration between the

ministry and the institutions' leaderships and are tailored to each institution's strategy and unique characteristics.

Funding:

Business academies, university colleges, and universities are state-funded, self-governing institutions.

Public funding of higher education institutions has four main components:

- A basic grant that is independent of the development in full-time equivalent number of students;
- An activity grant that depends on the full-time equivalent number of students;
- A result grant that depends on the graduates' average time of study and the graduates' average employment rate after completion of their education programme;
- A quality grant that consists of the funding that was not implemented as result grants.

All higher education institutions receive the four types of grants. By far, the largest part for all institutions is activity grants awarded as taximeter funding per full-time equivalent student based on the number of passed examinations.

The taximeter rates vary depending on the field of study and are determined on the annual Finance Act. Typically, natural science, technological science, and health science receive the highest taximeter rate and social science and the humanities receive the lowest taximeter rate.

References:

<https://eurydice.eacea.ec.europa.eu/national-education-systems/denmark/higher-education-funding>

<https://ufm.dk/uddannelse/institutioner-og-drift/okonomi/tilskud/aktivitetstilskud/takstkataloger/uddannelsestilskud>

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☒ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Budgetary constraints is an often-expressed concern for municipalities. It is important to keep in mind that the municipal economy consists of various sectors, and that priorities must be made between these sectors in accordance with local needs. Thus, the budgetary constraints is not an education-specific issue.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: